HH-639-26

HCH-5348-25

CEILEIGH HOOK (nee MCKERSIE)

Versus

NATHAN KING HOOK

HIGH COURT OF ZIMBABWE

CHIRAWU-MUGOMBA J

Harare, 6, 21, 25, 26, 27th August 2026.

S. ALUMENDA, for the plaintiff

UNOPPOSED MATRIMONIAL MATTER

CHIRAWU-MUGOMBA J: This matter was placed before me as an unopposed matrimonial matter. On the 6th of August 2026, I directed that heads of argument be filed by the 13th of August 2026 in support of the inclusion of a parenting plan in the consent paper filed by the parties. Judgment was therefore reserved pending the filing.

As the rate of divorce soars in Zimbabwe, it is important that courts set the tone in the handling of matrimonial matters involving what is commonly called a consent paper. This process is provided for in s7(5) of the Matrimonial Causes Act [Chapter *5:13*] as follows:-

7. Division of assets and maintenance orders

(5) In granting a decree of divorce, judicial separation or nullity of marriage an appropriate court may, in accordance with a written agreement between the parties, make an order with regard to the matters referred to in paragraphs (a) and (b) of subsection (1).

In December 2025, the plaintiff issued summons against the defendant seeking a decree of divorce and other ancillary relief. In paragraph six of the declaration, the plaintiff pleaded that there are four minor children of the marriage. The reason why I have referred to this particular paragraph is that it is those four children that the parental plan deals with. After initially defending the matter, the defendant and the plaintiff later found each other and hence the matter proceeded by way of a consent paper.

In her affidavit of evidence in paragraph ten, the plaintiff specifically stated that on the 20th of July 2026, the parties had signed a consent paper which has attached to it a parenting plan that they had both agreed to. She further expressed the wish of both parties to have the plan incorporated into the court order. Indeed, the parenting plan is attached to the consent paper. It is very elaborate. It runs into about ten pages.

In motivating the inclusion of the parenting plan into the court order, the plaintiff put forward four broad issues as follows:-

1. That this is in the best interests of children as the plan intricately addresses the welfare of children.
2. That the plan is a sacrosanct agreement and forms part of the consent paper and the Matrimonial Causes Act does not expressly exclude it.
3. That the court is enjoined to be guided by *stare decisis* since it has granted orders where parenting plans form part of the consent paper.
4. That the court is enjoined to perform its constitutional mandate as per s176 of the Constitution to develop the law by officially recognising parenting plans.

On point one above, the plaintiff cited s81(2) of the constitution in so far as it states that the best interests of the child test is the paramount consideration. On point two, plaintiff submits that s7(5) of the Matrimonial Causes Act makes provision for a court to take into account an agreement between the parties on how they wish their matter to be resolved. Reference is made to *Astra Holdings Limited*. *Vs*. *Chuku and anor,* HH-278-24; *Kempen*. *Vs Kempen,* SC-14-16; and *Book*. *Vs Davidson,* 1988(1) ZLR 365. On point three, the plaintiff refers to three matters in which a parenting plan was allowed to form part of the court order and attaches the plans. Further, that they create a judicial precedent. Reference was made to *Denhere vs*. *Denhere,* 2019(1) ZLR 554(CC). On point four, the plaintiff points out to the requirement in s176 of the courts using their inherent powers to develop the law and to protect their own processes. Reference is made to *ZB Bank Limited vs Rosen (pvt) Limited and ors,* HH-183-15.

It is beyond doubt that as provided for in s81 of the constitution, the best interests of the child standard is the paramount test in matters involving children. That in my view is not the contenscious issue. Indeed the Matrimonial Causes Act allows a court to take into account an agreement between the parties. However, the language used is ,'may'. This indeed confirms the trite position that when all is said and done, an order is granted not by litigants but by a court. All the cases cited by the plaintiff whilst important do not deal with whether or not an elaborate parenting plan can be included in a consent paper as a standalone and incorporated into an order of court. They advance general positions of the law. On judicial precedent, with respect, these are orders of the court and without a written judgment, I cannot second guess what the gist of the referred

matters were. I am therefore not bound by them. In the cited *Denhere* case, *stare decisis* is on the basis of a matter that has been argued in court and a legal position has been taken. I did not hear the plaintiff to suggest or refer to any cases in this jurisdiction in which the point of parenting plans was argued and a position taken by the courts. The directive to the plaintiff, to motivate the question at hand through written submissions is squarely within s176 of the constitution.

Let me now turn to what I perceive is the motivation by some litigants to include parenting plans in their consent papers. *Per se*, there is indeed nothing inherently wrong about parents wishing to regulate custody and access. In South Africa, parenting plans are part of the Children's Act 38 of 2005. Part three of the act deals specifically with parenting plans as follows:-

> **33. Contents of parenting plans**
>
> (1)The co-holders of parental responsibilities and rights in respect of a child may agree on a parenting plan determining the exercise of their respective responsibilities and rights in respect of the child.
>
> (2)If the co-holders of parental responsibilities and rights in respect of a child are experiencing difficulties in exercising their responsibilities and rights, those persons, before seeking the intervention of a court, must first seek to agree on a parenting plan determining the exercise of their respective responsibilities and rights in respect of the child.
>
> A parenting plan may determine any matter in connection with parental responsibilities and rights, including—
>
> (a)where and with whom the child is to live;
>
> (b)the maintenance of the child;
>
> (c)contact between the child and—
>
> (i)any of the parties; and
>
> (ii)any other person; and
>
> (d)the schooling and religious upbringing of the child.

4. A parenting plan must comply with the best interests of the child standard as set out in section 7.

(5)In preparing a parenting plan as Contemplated in subsection (2) the parties must seek—

(a) the assistance of a family advocate, social worker or psychologist; or

(b)mediation through a social worker or other suitably qualified person.

In addition section 34 provides formalities for the plan.

34. FORMALITIES

(1) A parenting plan—

(a)must be in writing and signed by the parties to the agreement; and

(b)subject to subsection (2), may be registered with a family advocate or made an order of court.

(2) An application by co-holders contemplated in section 33(1) for the registration of the parenting plan or for it to be made an order of court must—

(a)be in the prescribed format and contain the prescribed particulars; and;

(b)be accompanied by a copy of the plan.

3. An application by co-holders contemplated in section 33(2) for the registration of a parenting plan or for it to be made an order of court must—

(a)be in the prescribed format and contain the prescribed particulars; and

(b) be accompanied by—

(i)a copy of the plan; and

(ii)a statement by—

(aa) a family advocate, social worker or psychologist contemplated in section 33(5)(a) to the effect that the plan was prepared after consultation with such family advocate, social worker or psychologist; or

(bb)a social worker or other appropriate person contemplated in section 33(5)(b) to the effect that the plan was prepared after mediation by such social worker or such person.

(4) A parenting plan registered with a family advocate may be amended or terminated by the family advocate on application by the co-holders of parental responsibilities and rights who are parties to the plan.

(5) A parenting plan that was made an order of court may be amended or terminated only by an order of court on application—

(a) by the co-holders of parental responsibilities and rights who are parties to the

plan;

(b) by the child, acting with leave of the court; or

(c) in the child's interest, by any other person acting with leave of the court.

(6)Section 29 applies to an application in terms of subsection (2)

The key take aways are as follows. The plan must be underpinned by the best interests of the child standard as already defined in s7 of the act. It is not compulsory. It recognises that both parents have equal parental rights and obligations in respect of a minor child. The parents may come up with their own plan if they are not experiencing any difficulties. The parties if they are experiencing difficulties in exercise of their rights and obligations must first agree between themselves before approaching a court. The plan may include any other matter but emphasise is placed on where the child will live and with who, maintenance , contact (access), schooling and religion. The parties must seek the services of a professional third party being a family advocate, psychologist, and social worker. They may also opt for mediation and must seek services of a social worker. This means that the parenting plan is an elaborate process unlike in Zimbabwe where parties meet with their legal practitioners if they are represented and hammer out a settlement.

For plans developed by the parents if they are in agreement or those developed through assistance of third parties in the event of difficulties, the common denominator is that the plan must in in writing and signed by both parties. The plan may be registered with the family advocate or a court. If it is to be registered with the court, whether developed by the parties on their own or with the assistance of a professional third party, it must be in the prescribed format and must

contain specific particulars. Additionally, if developed through a third party as specified including mediation, there must be an accompanying statement confirming the involvement of the third party. A parenting plan whether registered with the family advocate or third -party involvement is not cast in stone and may be terminated including through an application by the child with leave of the court. This is through an application filed with the court. This shows that a parenting plan is not a walk in the park.

It is clear that not only has South Africa legislated a parenting plan but that it is very elaborate unlike in Zimbabwe where we have no such plans in our laws. Even in the face of elaborate legal provisions, challenges have arisen. In. *L.D.V.P.N vs. L.D.V.P.N*, (2026/060028/[2026]. ZAWCHC, the court had to deal with a matter in which parents could simply not agree on a parental plan. It was held that the court could not conclude a parenting plan for the parties. They had to do it on their own.

The plaintiff is seeking that the plan be made part of the court order. It is trite that an order of the court must be specific and more poignantly it must be capable of being enforced. Once the parenting plan is an order of court, it must then be complied with. It is trite that a party that fails to comply with an order of court risks contempt of court proceedings against them. Contempt of court is committed when a party wilfully disobeys an order of court which the party is aware of, see *Lindsay v Lindsay (2)* 1995 (1) ZLR 296(S) at 299B-C; *Haddow* v *Haddow* 1974 (1) RLR 5(G) at 6A. There are sanctions accompanying any contempt of court.

I now turn to some aspects of the parental plan which in my view are not capable of being enforced. I have picked a few but there are many.

1. Paragraph 10: Neither parent should speak negatively to/or around the children about the other parent, the other parent's family or friends, nor should they interrogate the children on issues relating to the other parent in any way that diminishes the love, respect, and affection that the children have for either party. *(**Who will police this?)***
2. Paragraph 11: Both parents agree to establish a means of communication that respects the time and need to know of their co-parent. Both parents agree that this communication is a brief whatsapp message.....***(What is considered brief and who will police this briefness?)***

PARENTING SCHEDULE

1. Paragraph 2 (a) – .....The on- duty parent shall collect the children who are both boarders from ....., or the .....bus at the end of the week and will have all four children for the weekend. The younger children will be dropped at the on-duty parent by 3pm on the day that the older children arrive back from boarding school. *(**If dropped at 3:10pm does that constitute contempt of court?)***
2. Paragraph 2(c).....On Thursday, Nathan shall collect the non-boarding children from pre-school and shall return them to Ceileigh's house no later than 6pm(fed and bathed if dropped after 5:30pm). From Friday afternoon, the non-boarding children shall join their older boarding siblings at whichever parents' house they are scheduled to be at by 3pm .....***(Is this enforceable?)***
3. Paragraph 2 (e)- Should either parent need to divert from this agreed schedule, he/she should contact his/her co-parent at least 24 hours

prior to the scheduled time, to request the change, bearing in mind that this might not be possible. If an out of sync change is necessary, in order that the longer-term commitment /schedule is a unaffected, days missed are sacrificed by the parent requesting the change. ***(Meaning what exactly and can this be enforced?)***

4. Paragraph 4- Exchanges take place in the parents' house car park and should be no longer than 15 minutes ***(Who will be the time keeper and umpire? If the exchange takes sixteen minutes, is that contempt of court?)***
5. Paragraph 9:.....Children are not to travel with a third party save with the written consent of both parents ***(Does this not interfere with freedom of the parents to date other people?)***

NEW PARTNERS

1. The parties shall not introduce a person to the children unless the relationship has lasted no less than six months and they are very sure it will be a long and stable relationship, and which is strong enough and important enough to involve the children. ***(How will this be enforced? How will the 'sure' part be enforced?)***
2. Paragraph 2: If both parents die, then custody of the children will go to .....and .....as the children's appointed guardians and custodians (***The trite legal position is that when both parents of a child are deceased, an application has to be made to the Magistrate Court sitting as a Children's Court for appointment of a guardian, though they may provide for this in a will but only if sole guardian or custodian?)***

JOINT HOUSE RULES AND DISCIPLINE

House rules

1. Screen Time/media allowance:-

- .....
- Weekends/school holidays: No more than 3 hours per day screen time, but ideally less.

2. Bedtimes and sleeping arrangements

- Bedtimes in each home will be between 6:30 -7:30PM excluding travel and special occasions.

3. Healthy habits

- Parents to encourage a healthy and varied diet for all children.

Are all these enforceable?

I have identified some of these as clauses that are either vague, difficult to implement or both. At the uppermost mind of the court is the fact that a breach of each clause potentially constitutes contempt of court.

In South Africa, the jurisdiction from which the plaintiff and the defendant seek to import this parenting plan, it is critical to note that there is a specific legal framework unlike in Zimbabwe. I dare say our legal framework is solid enough to deal with challenges related to custody and guardianship at divorce and after. Most litigants seem to not be cognisant of the fact that the Guardianship of Minors Act [Chapter *5:08*], parents of a minor child have equal rights of custody and guardianship unless a court decrees otherwise and awards these rights to one of the parents.

In addition, custody and the rights of the custodian parent are well set in case law. In *Makuni v Makuni* 2001 (1) ZLR 189 GOWORA J (as she then was) quoted with approval from Boberg *Family Law* at page 460 where in the author stated that:

> " An award of custody to a mother entrusts to her all that is meant by the nurture and upbringing of the minor children, in this is included all that makes up the ordinary daily life of the child – shelter, nourishment and the training of the mind....The child...passes into the home of the mother, and there it must find all that is necessary to its growth in mind and body...A custodian parent has therefore the right to regulate the life of the child, determining with whom he should or should not associate, how he should be educated, what religious training he should receive and how his health should be cared for. The non-custodian parent has no right to interfere in these matters, though he may petition the court to do so if it appears that the custodian parent has exercised his discretion in a manner contrary to the interests of the child or in conflict with an order of court. Otherwise, he is confined to his right of access to the child."

This equally applies to a father if he is the custodian parent.

Section six of the Guardianship of Minors Act states the following:-

6.Enforcement of orders relating to access

(1) In this section—

"access order" means an order of any court, including the High Court, which confers, expressly or impliedly, rights of access to a minor upon a parent who does not have the custody of that minor; "custodial parents" means—

(a) the parent of a minor who has the lawful custody of that minor; or

(b) a person who has been vested with the sole custody of a minor in terms of subsection (3) of section four;

"non-custodial parent" means the parent of a minor who has had rights of access to that minor conferred upon him by an access order.

Access is thus a form of temporary custody and hence both a custodian and non-custodian parent is expected by operation of law to uphold the best interests of the child. It is trite that custody is not cast in stone. A parent who has the day- to- day custody of a child must act in their best interests as should a parent who has temporary custody through an order for access. I would imagine a parent holding a stop-watch and timing that the exchange in a house hold car park should take less than fifteen minutes. Children are not commodities that should be exchanged in such a

manner. Section 9 of the Matrimonial Causes act allows variation if need be.

Section 60(3) of the constitution provides as follows:-

60. Freedom of conscience

(3) Parents and guardians of minor children have the right to determine, in accordance with their beliefs, the moral and religious upbringing of their children, provided they do not prejudice the rights to which their children are entitled under this Constitution, including their rights to education, health, safety and welfare.

This right has been qualified in the newly enacted Medical Services Amendment Act of 2026 as follows:-

8 D. Health services to children

(1) It shall be unlawful for any parent or guardian of a child to prevent a child from receiving any health service which is in the best interests of the child concerned, or to withhold consent for any health service in contravention of section 60(3) of the Constitution.

Contravention attracts criminal penalties. This reinforces the fact that Zimbabwe has adequate laws to protect the rights of children. Should a custodian or non-custodian parent infringe on these rights, action can be taken.

Given that scenario, why then should a country such as Zimbabwe without a legal framework and without Family Advocates or other experts specifically mandated in legislation seek to adopt in its laws this foreign concept.

It is my considered view therefore that standalone parenting plans are not part and parcel of the laws of Zimbabwe. What we have are consent papers which should capture enforceable agreements between the parties be it for custody, access, maintenance and division of assets. The

parenting plan cannot be a standalone, but its contents must be part and parcel of the concept paper provided that the provisions are enforceable. That is why many a time, in the family law division, we have turned down consent papers that are not enforceable. I have often asked when sitting in that court, for instance what 'reasonable' access means.

DISPOSITION

Having found that stand alone parental plans are not part of our legal framework and that whatever plans parents agree on should be subsumed in the body of the consent paper and not as a standalone and also be enforceable, it is apt that the matter be struck off the roll. The matter being unopposed, there is no reason why costs should be awarded to any party. It is thus ordered as follows:-

1. The matter is struck off the roll
2. There shall be no order as to costs.

Gill, Godlontons and Gerrans, Plaintiff's legal practitioners